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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
16/393,714	04/24/2019	Sina FATEH	113336-8013.US02	9044

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Perkins Coie LLP - Kali Care, Inc.
P.O. BOX 1247
Seattle, WA 98111-1247

EXAMINER	
WAGGONER, TIMOTHY R	

ART UNIT	PAPER NUMBER
3651	

NOTIFICATION DATE	DELIVERY MODE
07/30/2019	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

bcoleman@perkinscoie.com
ewelply@perkinscoie.com
patentprocurement@perkinscoie.com

Office Action Summary	Application No. 16/393,714	Applicant(s) FATEH, Sina	
	Examiner TIMOTHY R WAGGONER	Art Unit 3651	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 04/24/2019.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-19 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-19 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☐ The drawing(s) filed on _____ is/are: a)☐ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Claim Rejections - 35 USC § 112

The following is a quotation of 35 U.S.C. 112(b):
(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:
The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-19 is rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

Claim 13 recites the limitation "said medication" in lines 1 and 2. There is insufficient antecedent basis for this limitation in the claim.

Additionally claims 1,14 and their dependent claims use inconsistent language such as “a medication container”, “said container”, “a characteristic acoustic emission”, “said acoustic emission” and other examples. The examiner request that the applicant amend the claims so that elements are referred to consistently.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale or otherwise available to the public before the effective filing date of the claimed invention.

Claim(s) 1-4,6-12,14,15 and 17-19 is/are rejected under 35 U.S.C. 102(a)(1) as being anticipated by Leydon US 2016/0106375.

Leydon discloses an apparatus comprising:

(Re claim 1,14) "a remote adapted to engage a medication container, said remote comprising a purposed acoustic emitter adapted to emit a characteristic acoustic emission in user-transparent consequential response to a remote event" (900,901,902 figure 10). "a station, comprising: a processor; and a receiver in communication with said processor" (102 figure 1). "said processor is adapted to determine whether said acoustic emission is characteristic of said acoustic emitter, and to register said remote event ... characteristic of said acoustic emitter" (figure 3).

(Re claim 2) "said remote is adapted to removably engage said medication container" (900,901 figure 10).

(Re claim 3) "remote defines an aperture therein adapted to accept said container therein, such that compressing said body compresses said container so as to dispense a medication therefrom" (900,901 figure 10). To dispense the medication a user must apply a force on the remote in opposition to a force on the medication container to compress them both together.

(Re claim 4) "acoustic emitter comprises a whistle adapted to produce said characteristic acoustic emission when air is passed through" (902 figure 7,10).

(Re claim 6) "said acoustic emitter is adapted to produce at least two pitches in combination as at least a portion of said characteristic acoustic emission" (figure 7). The whistle of Leydon produces multiple pitches in any one sample.

(Re claim 7) "said acoustic emitter is adapted to produce a characteristic acoustic wave form" (figure 3,7).

(Re claim 8) "produce a characteristic acoustic sequence" (figure 3,7).

(Re claim 9,17) "said station comprises a smart phone" (para 80).

(Re claim 10,18) "said station comprises a dedicated unit" (para 80).

(Re claim 11,19) "station comprises at least one of a data store, a display, a communicator, and a user interface" (para 80).

(Re claim 12,15) "processor is adapted to determine and register supplemental remote event data, comprising at least one of a time of said remote event, an environmental condition … user condition … a property of said remote event" (para 0083; 3020, 3050, 3090 figure 3).

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

Claim 5 is/are rejected under 35 U.S.C. 103 as being unpatentable over Leydon

Leydon discloses a whistle.

Leydon does not disclose the whistle producing an ultrasonic pitch.

Examiner takes official notice that ultrasonic whistles are well known in the art could easily have been used in this invention if so desired because ultrasonic pitches have the benefit of not effecting a user's hearing adversely.

Claim 13 and 16 is/are rejected under 35 U.S.C. 103 as being unpatentable over Leydon in view of Sutherland et al. US 2014/0182584.

Leydon discloses the system above including a remote which generates an acoustic emission in response to an event and a station which records an acoustic emission.

Leydon does not disclose that the event is dispensing said medication from said container nor that the supplemental data comprises a quantity of said medication dispensed.

Sutherland teaches that the event is dispensing said medication from said container which causes the acoustic emission and that the supplemental data comprises a quantity of said medication dispensed. (Para 0128, 0132).

It would have been obvious to one skilled in the art to modify the system of Leydon to include an the event is dispensing said medication from said container which causes the acoustic emission and that the supplemental data comprises a quantity of said medication dispensed because monitoring compliance in relation to the users status helps to diagnose potential issues and track users response to the medication.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to TIMOTHY R WAGGONER whose telephone number is (571)272-8204. The examiner can normally be reached on Mon-Thurs 5am-330pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Gene Crawford can be reached on 571-272-6911. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

TIMOTHY R. WAGGONER
Primary Examiner
Art Unit 3651

/TIMOTHY R WAGGONER/
Primary Examiner, Art Unit 3651